

CIVIL COURT OF THE CITY OF NEW YORK
COUNTY OF NEW YORK, HOUSING PART F

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CHELSEA PARTNERS I, LLC,
Petitioner, Landlord,

-against-

**Index No. L&T 81870/17
DECISION AND ORDER**

MARCELO ROMANO, “John Doe”

Respondent(s)-Tenant(s)

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FRANCES A. ORTIZ, JUDGE

Recitation as required by CPLR 2219(a), of the papers considered in the review of the respondent’s motion to reargue this Court’s decision of January 21, 2020.

Papers	Numbered
Notice of Motion, Affirmation & Memorandum of Law.....	1
Affirmation in Opposition & Memorandum of Law.....	2
Reply Affirmation.....	3

Upon the foregoing cited papers, the Decision/Order of this Court on respondent’s motion to reargue this Court’s decision of January 21, 2020 in the above matter is as follows:

Under *CPLR 2221(d)*, a motion for leave to reargue shall be identified as such and shall be based on facts or law allegedly overlooked or misapprehended by the court in determining the prior motion. Also, a motion for reargument can not be utilized as a mechanism to allow a reargument of an unsuccessful outcome that was previously decided nor can reargument serve as an opportunity to set forth different arguments from those presented on the original application.

Foley v Roche, 68 A.D.2d 558 (1st Dep’t 1979).

After such review of this Court's January 21, 2020 decision and oral argument, this Court concludes that it did not misapprehend the facts or misapply the law regarding the denial of summary judgment to respondent. Accordingly, the motion is denied.

According to respondent, this Court erred in its January 21, 2020 decision by denying him summary judgment on the issue of rent stabilization when it reasoned that finding judgment in his favor would equate to granting a variance for residential use of the subject premises without administrative authorization.

While it is accurate that this Court made such a statement, the above summary by respondent of this Court's reasoning for denial of his summary judgment motion overlooks an additional reasoning provided in the decision. This Court's analysis for the denial provided a two-fold reasoning. The other reasoning for denial of summary judgment was that a trial was necessary to determine if the subject premises could be legalized.¹ Specifically, this Court's exact language in the decision stated, "Along with this reasoning, it extends that herein there needs to be a trial on all the issues with specific focus on whether petitioner has exhausted its ability to legalize the subject premises before DOB and the Board of Standards and Appeals." *Chelsea Partners I, LLC v. Romano*, 66 Misc. 3d 436, 441, (N.Y. Cty Civ. Ct. 2020).

Furthermore, the record on the motions lacked any finality on the petitioner's efforts to exhaust its remedies involving the potential legalization of the subject premises or inability to amend the certificate of occupancy. As such, this Court found that a trial was necessary to

¹ This same reasoning is addressed in *625 W. End, Inc. v. Howard*, 2001 WL 1682615, 2001 N.Y. Slip Op. 40496 (U) (AT 1st Dep't 2001) which is actually cited by respondent in this instant motion. The Appellate Term in *Howard*, *supra*. discussed how an owner must demonstrate how a certificate of occupancy is incapable of amendment or how amending it would be burdensome. Here, these are the precise facts that remain open and must be addressed at trial.

resolve whether petitioner has exhausted its ability to legalize the subject premises. *Howard, supra*. Thereafter, it would logically follow that after the trial, the issue of rent stabilization status would be ripe for deciding by the trial court judge.

Based on the above, this Court did not misapprehend the facts or misapply the law regarding the denial of summary judgment to respondent. Accordingly, the respondent's motion to reargue is denied.

ORDERED: Respondent's motion to reargue is denied; and further

ORDERED: That the matter is referred to Part F for conference and/or referral to the trial part, and it will likely be restored by the Part F Judge, when appropriate, assuming respondent has not filed a COVID 19 Hardship Declaration.²

This is the decision and order of this Court. Copies of this decision to be emailed to the parties and uploaded to NYSCEF by the clerk.

Date: March 1, 2020



Judge, Frances A. Ortiz

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² Currently, UCMS does not reflect a COVID-19 Hardship Declaration filed by respondent.